

Salesforce - Salesforce Data Platform Agreement 3

Enterprise Data Platform Subscription and Services Agreement

Contract ref CTR-090. Vendor ref VEN-SALESFORCE. Term 2027-06-29 to 2031-06-28. Notice deadline 2031-02-28. Document status: synthetic executed agreement for AbarVa Source testing.

Commercial field	Value
Annual contract value	\$43,500,000
Actual annual spend baseline	\$37,413,299
Total committed value	\$173,905,748
Decision owner role ref	LDR-032
Scope summary	Salesforce Data Cloud, Service Cloud, Marketing Cloud, premium support, MuleSoft API/event processing, and implementation capacity for commercial, loyalty, customer recovery, and revenue-management operations.

1. Services and Business Scope

1. Statement of Scope

The contract covers Salesforce Data Cloud, Service Cloud, Marketing Cloud, MuleSoft API/event processing, premium support, and implementation capacity for commercial, loyalty, customer recovery, and revenue-management operations.

Extraction class: scope. Ledger: scope. Concept: contract.scope_summary.

2. Fees and Commercial Schedule

2. Annual Contract Value

Annual contract value is USD 43,500,000, subject to the pricing schedule and committed quantities in Exhibit A.

Extraction class: contract_term. Ledger: decision. Concept: contract.annual_value.

3. Total Committed Value

Total committed value across the term is USD 173,905,748, excluding taxes and separately approved change orders.

Extraction class: contract_term. Ledger: decision. Concept: contract.total_committed_value.

4. Actual Annual Spend Baseline

The spend baseline used for optimization is USD 37,413,299 of actual annual spend for the current measurement year.

Extraction class: payment. Ledger: economics. Concept: contract.actual_annual_spend.

5. Material Pricing Lines

The pricing schedule contains five material spend components: Data Cloud Enterprise, Service Cloud Premium Support, Marketing Cloud Automation, MuleSoft API/Event Pack, and implementation capacity retainer.

Extraction class: rate_card. Ledger: scope. Concept: contract.pricing_line_count.

3. Usage, Overage, and Entitlement Management

6. Usage and Entitlement Reset

Customer may reduce unused subscriptions and API/event capacity at renewal when monthly usage evidence demonstrates sustained utilization below committed quantities.

Extraction class: usage. Ledger: avoided_cost. Concept: usage.entitlement_reclaim.

4. Service Levels and Credits

7. Service Credit Formula

If monthly platform availability or priority incident response falls below target, Customer earns a service credit calculated against affected monthly recurring fees, subject to the credit cap and claim window.

Extraction class: service_credit. Ledger: recoverable_leakage. Concept: sla.credit_formula.

8. Service Credit Claim Window

Customer must submit service-credit claims within 60 days after the monthly SLA report is made available.

Extraction class: service_credit. Ledger: recoverable_leakage. Concept: sla.credit_claim_window_days.

9. Service Credit Cap

Aggregate service credits are capped at 12 percent of affected monthly recurring fees for the applicable service month.

Extraction class: service_credit. Ledger: recoverable_leakage. Concept: sla.credit_cap_pct.

5. Renewal, Termination, and Exit

10. Renewal Notice Deadline

The current term expires on 28 June 2031. Written non-renewal or renegotiation notice must be delivered no later than 28 February 2031.

Extraction class: renewal. Ledger: leverage. Concept: contract.notice_deadline.

11. Auto-Renewal

The agreement does not automatically renew unless the parties execute a renewal order form.

Extraction class: renewal. Ledger: leverage. Concept: contract.auto_renew.

6. Benchmarking and Price Protection

12. Benchmarking Right

Customer may request one annual benchmark review against published list pricing and similarly situated enterprise customers; benchmark relief is limited unless both parties agree to a renewal amendment.

Extraction class: benchmark. Ledger: negotiated_improvement. Concept: contract.benchmarking_clause.

13. Price Protection

Renewal price increases for like-for-like scope are capped at 6.5 percent annually unless additional products, volume, or regulatory requirements are added.

Extraction class: contract_term. Ledger: negotiated_improvement. Concept: contract.price_uplift_cap.

7. Audit, Reporting, and Invoice Review

14. Invoice and Usage Audit Right

Customer may audit invoices, usage calculations, support charges, and rate-card application once per contract year on thirty days written notice.

Extraction class: invoice. Ledger: recoverable_leakage. Concept: contract.audit_right.

8. Security, Privacy, and AI Data Use

15. Security, Privacy, and AI Data Use

Vendor must process Customer Data only for contracted services, maintain SOC 2 Type II controls, provide subprocessors list updates, and may not train generalized AI models on Customer Data without written approval.

Extraction class: security_privacy. Ledger: evidence. Concept: contract.security_privacy.

9. Statements of Work and Change Orders

16. Change Order Control

No professional-services work, rate change, or scope expansion is billable unless documented in an executed SOW or change order referencing this agreement.

Extraction class: change_order. Ledger: recoverable_leakage. Concept: contract.change_order_control.

Exhibit A - Pricing Schedule

SKU or service	Description	Quantity or driver	Annual value
SF-DC-ENT	Data Cloud Enterprise	28,500 user-months	\$29,548,800
SF-SVC-PREM	Service Cloud Premium Support	10,800 user-months	\$5,508,000
SF-MC-AUTO	Marketing Cloud Automation	4,200 user-months	\$2,734,200
SF-API-EVT	MuleSoft API/Event Pack	950 million events	\$3,895,000
SF-IMPL-CAP	Implementation capacity retainer	18,000 hours	\$1,814,000

Exhibit B - Evidence and Reporting Obligations

Vendor must support monthly reporting for invoices, service credits, usage, support incidents, rate-card application, and renewal quote history. Customer may use these reports for contract optimization, renewal governance, and finance-confirmed value tracking.

Exhibit C - Privacy and AI Data Use

No personal employee names, personal emails, phone numbers, or employee IDs are required for AbarVa extraction. Owner roles, role references, and system record identifiers are sufficient for sourcing analysis and auditability.